

**CHAPTER xxxv.**

An Act to confer further powers upon the Rhondda and Swansea Bay Railway Company and for other purposes. A.D. 1914.
[8th July 1914.]

WHEREAS by the Rhondda and Swansea Bay Railway Act 1882 the Rhondda and Swansea Bay Railway Company (in this Act called "the Company") were incorporated and were empowered to make the railways and other works therein described in the county of Glamorgan for the purpose of affording a means of railway communication between the Rhondda Valley and Swansea and other ports in Swansea Bay :

And whereas by various subsequent Acts the powers of the Company have been from time to time extended and further powers have been conferred upon them :

And whereas it is expedient that the Company be authorised to construct the works and to purchase the additional lands hereinafter described and to exercise the other powers by this Act conferred upon them :

And whereas it is expedient that the Company be authorised to abandon the portion in this Act in that behalf mentioned of the Railway No. 3 authorised by the Rhondda and Swansea Bay Railway Act 1890 (in this Act called "the Act of 1890") :

And whereas it is expedient that the Company be authorised to raise additional capital and borrow further money for the purposes in this Act mentioned :

And whereas plans and sections showing the lines and levels of the works authorised by this Act such plans showing also the lands which may be taken compulsorily under the

A.D. 1914. powers of this Act and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes of this Act were duly deposited with the clerk of the peace for the county of Glamorgan and are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Rhondda and Swansea Bay Railway Act 1914.

Incorporation of Acts.

2. The clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and Parts I II and III of the Companies Clauses Act 1863 (relating respectively to cancellation and surrender of shares additional capital and debenture stock) as amended by subsequent

Acts the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and Part I (relating to construction of a railway) of the Railways Clauses Act 1863 so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are incorporated with and form part of this Act. A.D. 1914.

3. In this Act—

Interpreta-
tion.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction;

The expression “the railway works” means the widening of the main line of the Company and the widening of the bridge carrying the main line of the Company over the River Avan by this Act authorised;

The expression “Blackwells weir” means the weir on the River Avan near Blackwells in the urban district of Margam;

The expression “the Neath Council” means the rural district council of Neath.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if “local authority” were mentioned in those sections in addition to “company or society” Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated. Protection of gas and water mains of local authorities.

5. Subject to the provisions of this Act the Company may make and maintain in the lines or situations and within the limits of lateral deviation shown upon the deposited plans and according to the levels shown upon the deposited sections the works described in this section with all proper and sufficient bridges rails sidings junctions approaches roads buildings cranes lifts machinery piles embankments walls channels cuts drains and other works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes. Power to execute works.

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The works hereinbefore referred to and authorised by this Act will be situate in the county of Glamorgan and are the following (that is to say):—

- (A) A diversion of the River Avan commencing and terminating in the parish and urban district of Margam at points in the said river situate respectively seven chains or thereabouts measured in a southerly direction and fourteen chains or thereabouts measured in a north-easterly direction from Blackwells weir:
- (B) A widening of railway being a widening of the main line of the Company on both sides commencing in the parish and borough of Aberavon at a point seven chains or thereabouts measured in a south-westerly direction from Blackwells weir and terminating in the parish of Michaelstone Lower in the rural district of Neath at a point three and a half chains or thereabouts north-eastwards of the level crossing (known as Copper Miners Level Crossing) of the said main line by the road leading from Blackwells to London Row Cwmavon:
- (c) A bridge widening being a widening in the said parish of Michaelstone Lower and in the said parish and urban district of Margam on both sides of the bridge carrying the main line of the Company over the River Avan near Tymaen sidings Cwmavon.

Limits of
deviation.

6. In constructing the works hereinbefore described and authorised by this Act the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels of the works as shown on the deposited sections to any extent not exceeding five feet upwards or downwards.

Power to
stop up
existing and
to construct
new foot-
path.

7.—(1) Subject as hereinafter mentioned the Company may stop up and discontinue for traffic of every description so much of the existing footpath leading from the road between Aberavon and Cwmavon known as Cwmavon Road over the River Avan past Blackwells weir towards Port Talbot as lies between Cwmavon Road and a point in the said footpath on the eastern side of the said river three chains or thereabouts southwards of Blackwells weir and in lieu thereof the Company may in the

manner shown on the deposited plans make and maintain in the said parish and borough of Aberavon and the said parish and urban district of Margam a new footpath (in this section referred to as "the new footpath") from the last-mentioned point to a point in the said road known as Cwmavon Road two chains or thereabouts south-westwards of the junction therewith of the said existing footpath. A.D. 1914.

(2) The Company shall not under the provisions of this section stop up the said portion of the existing footpath until the new footpath has been completed to the satisfaction of the road authority and is open for public use or until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use.

(3) As from the completion to the satisfaction of the road authority of the new footpath or as from the date of the said certificate all rights of way over or along the said portion of the existing footpath shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of footpath stopped up so far as the same is bounded on both sides by lands of the Company.

(4) The new footpath when made and completed shall unless otherwise agreed between the road authority of the borough or district in which the same is situate and the Company be repaired and maintained by and at the expense of the road authority.

8. Subject to the provisions in the Railways Clauses Consolidation Act 1845 and in Part I (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may in the construction of the widening of railway by this Act authorised lay down an additional line of rails across and on the level of the public road numbered on the deposited plans in connection with such widening 2 and 6 in the parish of Michaelstone Lower: Power to cross certain road on the level.

Provided that before the Company lay down such additional line of rails on the said level crossing they shall erect to the reasonable satisfaction of the Neath Council a footbridge over the widened railway which footbridge shall have a clear width

A.D. 1914. throughout of not less than four feet with rails or parapets on both sides of not less than four feet in height and the steps forming the approaches to such footbridge shall be constructed with a half landing.

Power to
acquire ease-
ments over
River Avan
compul-
sorily.

9. Notwithstanding anything contained in this Act or in any Act wholly or partly incorporated therewith the Company shall not be required to purchase any part of the River Avan which may be crossed or interfered with in constructing the works authorised by this Act or any of them but may acquire such easements and rights in or over such river as they may require for making maintaining working and using such works or any of them and may give notice to treat in respect of such easements and rights describing the nature thereof and (subject to the foregoing provisions of this section) the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts.

For protec-
tion of cor-
poration of
Aberavon.

10. For the protection of the mayor aldermen and burgesses of the borough of Aberavon (in this section called "the corporation") the following provisions shall unless otherwise agreed in writing between the Company and the corporation apply and have effect:—

(1) Notwithstanding anything contained in the section of this Act the marginal note whereof is "Power to stop up existing and to construct new footpath" the Company shall maintain and keep in repair at their own expense so much of the new footpath authorised by that section as is situate on their property:

(2) Twenty-one days before the Company commence to construct any of the works authorised by this Act which will or may affect any sewer or water main of the corporation the Company shall submit to the corporation plans sections and other necessary particulars showing how they propose to execute such works in relation to the said sewer or water main and the Company shall comply with all reasonable requirements of the corporation with regard to the execution of such works. Such plans sections and particulars shall be deemed to be approved if objection thereto in writing is not delivered to the

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Company within fourteen days after the delivery of the same to the corporation and if any objection thereto in writing is so delivered with regard to which the corporation and the Company are unable to come to an agreement the plans sections and particulars shall be referred to and settled by arbitration under this section. The Company shall not interfere with any sewer or water main of the Corporation until they shall have given to the engineer of the corporation three clear days' notice in writing of their intention to commence the works and such notice shall not be given until either the said period of twenty-one days has expired or the approval of the corporation to the said plans sections and particulars has been given or such plans sections and particulars have been settled by arbitration as aforesaid :

- (3) If by reason of the exercise of any of the powers conferred on the Company by this Act it shall be necessary to sever or interfere with any sewer or water main of the corporation the corporation may within fourteen days after the submission of the plans sections and particulars mentioned in subsection (2) of this section serve a notice upon the Company stating that they desire to execute the necessary works in connection with such severance or interference (hereinafter referred to as "the severance works") and if such notice has been served the Company shall not be entitled to execute the severance works but within three clear days after the receipt by the corporation of notice from the Company that the severance works are required to be commenced the corporation shall execute and complete with all reasonable despatch the severance works and forthwith lay all necessary sewers or water mains (if any) (hereinafter referred to as "the substituted works") for maintaining the flow of sewage or water during such severance or interference and the Company shall pay to the corporation the reasonable cost of the severance works and the substituted works. Provided that if the corporation fail to proceed with the severance works and the substituted works

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forthwith after the service of such three days' notice on them and to execute the same as rapidly as circumstances reasonably permit the Company may themselves carry out all such works and the Company shall not exercise any of the powers of this Act which render necessary such severance or interference until the severance works and the substituted works shall have been completed:

- (4) If by reason of the execution of any of the powers of this Act any sewer or water main of the corporation shall be rendered unnecessary and the Company shall have paid to the corporation the reasonable cost of the severance works and the substituted works such sewer or water main shall become the property of the Company but the Company shall not be bound to remove the same:
- (5) If by reason of the execution of any of the powers of this Act any increased length of sewer or water main shall become necessary the same shall be laid down by the corporation according to such plans sections and particulars and in such manner as shall be approved in writing by the Company or (if such approval is unreasonably withheld) by arbitration under this section and the Company shall pay to the corporation the reasonable cost of the necessary works:
- (6) If by reason of the execution of any of the powers of this Act the corporation shall necessarily incur any cost in altering any sewer or water main existing at the passing of this Act the Company shall repay to the corporation the reasonable cost of such alterations:
- (7) The Company shall make full compensation to the corporation for any damage to any sewer or water main of the corporation existing at the passing of this Act caused by any subsidence of Cwmavon Road resulting from the exercise by the Company of any of the powers of this Act:
- (8) Where in consequence of the exercise of the powers of this Act the land under which any sewer or water main of the corporation is situate shall become the

property of the Company the corporation shall be entitled by the borough engineer and their agents servants and workmen as and when and so far as is necessary upon giving to the Company except in cases of emergency fourteen days' notice in writing to enter upon such land for the purpose of maintaining examining repairing renewing and relaying such sewer or water main or any work connected therewith so long as the same are the property of the corporation and of laying on such land new and additional sewers water mains and other works in connection therewith and the Company shall give to the corporation all reasonable facilities for effecting such purposes but the corporation shall not in exercising their rights under this subsection delay or interfere with the traffic or business of the Company in any unnecessary manner or involve the Company in any unnecessary expense :

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- (9) The Company shall not in carrying out the works authorised by this Act unnecessarily impede or interfere with the proper flow of the River Avan and shall to the reasonable satisfaction of the corporation do all works reasonably necessary or proper for preventing flooding from the river in the borough of Aberavon being caused by the execution of the works by this Act authorised :
- (10) If any difference shall arise between the Company and the corporation under this section the same shall be referred to and determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

11. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the Glynecorrwg Urban District Council (in this section referred to as "the council") shall unless otherwise agreed in writing between the Company and the council apply and have effect (that is to say) :—

For protec-
tion of Glyn-
ecorrwg
Urban
District
Council.

- (1) Where the works authorised by this Act are proposed to be constructed under over or so as to affect any

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sewer or work belonging to the council the same shall be constructed in accordance with plans sections and descriptions to be previously submitted to and reasonably approved by the surveyor to the council and under the superintendence (if given) and to the reasonable satisfaction of the said surveyor. Provided that if the said surveyor shall neglect to signify in writing his approval or disapproval of such plans sections and descriptions within twenty-one days after they shall have been submitted to him he shall be deemed to have approved thereof and if he shall have so signified his disapproval thereof the plans sections and particulars shall be referred to and settled by arbitration under this section:

- (2) The Company shall at all times maintain so much of the works authorised by this Act as affects any sewer or work belonging to the council in substantial repair to the reasonable satisfaction of the said surveyor:
- (3) If in consequence of the construction maintenance or existence of the works authorised by this Act it becomes at any time reasonably necessary for the safety of any sewer or work of the council to protect or support such sewer or work the Company shall to the reasonable satisfaction of the said surveyor provide such works of protection or support as are reasonably required:
- (4) If in the construction of the works authorised by this Act it is necessary to remove alter or interfere with any sewer or work of the council in such a way as in the reasonable opinion of the said surveyor to interrupt the passage of sewage through the same the Company shall before removing altering or interfering with such sewer or work construct in lieu thereof to the reasonable satisfaction of the said surveyor a good and efficient sewer or other necessary works (if any) for continuing the passage of sewage as efficiently as the same passed by means of the sewer or work proposed to be removed altered or interfered with:
- (5) If any existing sewer of the council or any part thereof shall be retained as the property of the council on

or if any sewer so substituted as aforesaid shall be constructed on lands or works of the Company to be acquired or constructed under the powers of this Act the council shall be entitled without payment to an easement or right to maintain and repair such sewer or sewers at all reasonable times but so as not to delay or interfere with the traffic or business of the Company in any unnecessary manner or to involve the Company in any unnecessary expense : A.D. 1914.

- (6) If in consequence of the construction of the works authorised by or the exercise of the powers of this Act any damage or injury is caused to any sewer or work of the council the Company shall compensate the council for any loss or expense occasioned to the council by such damage or injury and in particular the Company shall indemnify the council against any loss injury or expense suffered by them in consequence of the diversion of the River Avan under the powers of this Act:
- (7) The Company shall repay to the council the reasonable additional expense (if any) incurred by them in connection with the superintendence under this section of any works authorised by this Act or in connection with the consideration of any plans sections and descriptions submitted under this section by the Company but the provisions of this subsection shall not apply to any remuneration paid to any permanent salaried officer of the council:
- (8) If any difference shall arise between the Company and the council under this section the same shall unless otherwise agreed be referred to and determined by an arbitrator to be appointed failing agreement on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such arbitration.

12. For the protection of the urban district council of Margam (in this section referred to as "the Margam Council") the following provisions shall unless otherwise agreed in writing

For protection of Margam Urban District Council.

A.D. 1914. between the Company and the Margam Council apply and have effect (that is to say):—

- (1) The Company shall not commence to make any new footpath under the provisions of the section of this Act of which the marginal note is "Power to stop up existing and to construct new footpath" unless they shall have previously submitted to the surveyor of the Margam Council plans of the works proposed to be executed and such plans so far as they relate to works to be made in the urban district of Margam have been approved by the said surveyor or in the event of his unreasonably refusing to approve such plans or failing to signify his approval or disapproval thereof for a period of twenty-one days after the same have been submitted to him have been settled by an arbitrator to be appointed as hereinafter provided:
- (2) The new footpath and bridge for carrying the same over the River Avan so far as the footpath and bridge will be situate in the said urban district shall be constructed strictly in accordance with such plans as may have been approved or settled as aforesaid and in all respects to the reasonable satisfaction of the said surveyor to the Margam Council:
- (3) Notwithstanding anything in the aforesaid section of this Act so much of the new footpath and bridge as will be situate upon or over the property of the Company shall be maintained by the Company:
- (4) If in the construction of the works by this Act authorised it may be necessary to remove alter or interfere with any sewer or drain of the Margam Council or in which the Margam Council are interested or any overflow tank or measuring or gauge chamber thereof in such a way as to endanger the stability of the works or to interrupt the passage of sewage or other matter through such sewer or drain or the user of any such overflow tank or chamber the Company shall before removing altering or interfering with such sewer or drain overflow tank or chamber construct in lieu thereof to the reasonable satisfaction of the said surveyor a good

and sufficient sewer or drain or overflow tank or other necessary works for continuing the passage measuring or gauging of sewage or other matter as efficiently as by means of the sewer drain overflow tank or chamber proposed to be removed altered or interfered with:

- (5) If any such existing sewer or drain or any part of such substituted sewer drain overflow tank or measuring or gauge chamber shall be retained or constructed on lands or works of the Company to be acquired or constructed under the powers of this Act the owners thereof shall be entitled without payment to an easement or right to maintain and repair such existing or substituted sewer drain overflow tank or measuring or gauge chamber and shall have access to such existing or substituted sewer drain overflow tank or measuring or gauge chamber at all reasonable times for those purposes and also for the purpose of examining the state and condition of such sewer drain overflow tank or measuring or gauge chamber but so as not to delay hinder or interfere with the traffic or business of the Company or to involve the Company in any expense:
- (6) In exercising the powers of this Act the Company shall preserve reasonable means of access from London Row Cwmavon to the footbridge over the River Avan known as Tyr-Ynys footbridge the northern end of which is situate upon the property which on the deposited plans relating to the widening of the railway at Blackwells is numbered 12 in the urban district of Margam:
- (7) In executing the bridge widening (c) authorised by the section of this Act of which the marginal note is "Power to execute works" the Company will not make the span less than the span of the existing bridge:
- (8) Any difference which may arise between the Company and the Margam Council and any plans to be settled by an arbitrator under this section shall be referred to and determined by an arbitrator to be appointed on the application of either party by the President

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of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

Tolls on
railway
works.

13. For the purposes of tolls rates charges and duties and for all other purposes whatsoever the railway works shall be deemed to be part of the railway undertaking of the Company.

Power to
Company to
acquire
additional
lands.

14. The Company in addition to the other lands which they are by this Act authorised to acquire may enter upon and take compulsorily or by agreement and may appropriate and use for all or any of the general purposes of their undertaking all or any of the lands hereinafter described and delineated on the deposited plans and described in the deposited book of reference and any estates or interests in any such lands The lands above referred to and by this section authorised to be entered upon taken appropriated and used are situate in the county of Glamorgan and are as follows:—

- (A) Lands in the parish and borough of Aberavon situate on the south-western side of the main line of the Company and extending from Aberavon Seaside Station in a north-westerly direction for a distance of fifty-five chains or thereabouts:
- (B) Lands houses and other property in the parish of Michaelstone Lower in the rural district of Neath and in the parish and urban district of Margam forming the site of and lying on both sides of the main line of the Company and extending from the bridge carrying the main line of the Company over the River Avan near Tymaen sidings Cwmavon to a point sixteen and a half chains or thereabouts measured in a south-westerly direction from such bridge:
- (c) Lands in the parish of Coedfrank in the rural district of Neath lying between the main line of the Company and the Swansea and Neath Railway of the Great Western Railway Company and extending in a north-easterly direction for a distance of about twenty-two chains from the road which crosses over the last-mentioned railway at the western end of Briton Ferry Road Station.

The Company shall not in the exercise of the powers of this section prevent or prejudicially interfere with the construction of the bridge and approaches mentioned in subsection 4 of section 70 of the Great Western Railway Act 1912. A.D. 1914.

15.—(1) Subject as hereinafter mentioned the Company may stop up and discontinue for traffic of every description so much of the roads lying on either side of the main line of the Company and of any other streets or roads including Tymaen Street Pelly Street Gower Street and Hazelwood Row as are situate on the lands (B) described in the section of this Act of which the marginal note is “Power to Company to acquire additional lands” and also the level crossings (if any) of such streets or roads over the Company’s railway or some or one of them and thereupon all public and other rights of way (if any) over such portions of streets or roads shall be by this Act extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portions of streets or roads so stopped up. Power to stop up certain roads and level crossings.

(2) No such portions of streets or roads shall be stopped up unless the Company are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree but the Company shall not be required to purchase any part of the properties numbered respectively on the deposited plans 58 60 61 and 62 in the parish of Michaelstone Lower.

(3)—(i) Before the Company stop up the level crossings over the Company’s railway at Tymaen Street Pelly Street and Gower Street under the powers of this section they shall—

(a) Erect two footbridges over the railway to connect the portions on either side of the railway of Pelly Street and Gower Street respectively each of which footbridges shall have a clear width throughout of not less than four feet with rails or parapets on both sides of not less than four feet in height and the steps forming the approaches to such bridges shall be constructed with a half landing:

(b) Construct on each side of the railway a roadway of a clear width of not less than twenty-five feet and

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extending from Tymaen Street to a point at or near the western end of All Saints Church and on each such roadway to the reasonable satisfaction of the Neath Council properly ballast form metal and drain a carriageway thereon Provided that at the places where the approaches to the said footbridges join or are situate over such roadways the carriageway shall not be required to be of a greater width than twenty feet:

(c) Provide a level crossing over the railway at or near the western end of All Saints Church to connect the roadways to be constructed as aforesaid and erect good and sufficient gates on each side of the railway at such level crossing in accordance with the provisions of section 47 of the Railways Clauses Consolidation Act 1845 and also a suitable signal cabin from which the said gates shall be controlled.

(ii) The said footbridges if and when constructed shall be maintained by the Company in good order and condition for the free use of the public and the said gates and signal cabin when erected by the Company shall be at all times maintained by them in proper order and condition.

(iii) The roadways to be constructed by the Company under the provisions of this subsection shall when completed in accordance with the provisions of this subsection vest in the Neath Council and be dedicated to the public and repairable by the inhabitants at large.

(iv) If any difference shall arise between the Company on the one hand and the Neath Council on the other hand under the provisions of this subsection such difference shall be referred to and settled by a single arbitrator who in default of agreement between the parties shall be appointed by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

Improve-
ments at
Cwmavon
station.

16. Contemporaneously with the construction of the works described in subsection (3) of the immediately preceding section of this Act the Company shall at Cwmavon Station—

(a) Extend their up platform to the same length as the down platform as existing at the passing of this Act and erect a suitable covered shelter on such up

platform for the use of passengers on the Company's railway : A.D. 1914.

- (b) Erect a footbridge over the Company's lines of railway between the up and down platforms at a point near the Company's goods shed as existing at the passing of this Act so as to connect those platforms near their upper ends :
- (c) So far as reasonably possible improve the access between the upper end of the said down platform and the footpath approaching the station on that side.

17. Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the following provisions for the protection and benefit of the Neath Council (in this section referred to as "the council") shall except so far as may be otherwise agreed in writing between the Company and the council and in addition to the provisions of any other Act enuring for the benefit of the council apply and have effect (that is to say):—

For protec-
tion of Neath
Rural
District
Council.

- (1) The Company shall not (a) break up or interfere with any sewer or drain or any work connected therewith belonging to the council or (b) break up or interfere with any gas or water main pipe or apparatus which belongs to the council and to which the provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 as extended by this Act do not apply (all of which are in this section referred to as "apparatus of the council") or (c) construct any work under the powers conferred upon them by this Act over or in any way affecting any such apparatus of the council until in any such case they shall have given to the council twenty-one days' notice in writing of their intention so to do and such notice shall be accompanied by plans sections and other particulars showing the work proposed to be executed by the Company and such work shall only be executed in accordance with such plans sections and particulars as may be reasonably approved by the engineer to the council and shall be executed under his superintendence (if given) and to his reasonable satisfaction but at the cost in all things of the Company Provided always that if the said engineer shall

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not have signified in writing his approval or disapproval of such plans sections and particulars within twenty-one days after they shall have been submitted to him he shall be deemed to have approved thereof and if he shall have so signified his disapproval thereof the plans sections and particulars shall be referred to and settled by arbitration under this section:

- (2) Before the Company construct any work under the powers of this Act over or in any way affecting any apparatus of the council they shall make provision to the reasonable satisfaction of the said engineer for protecting such apparatus from injury and for affording reasonable access thereto for the purpose of examination alteration renewal or repair:
- (3) If in the construction of any work authorised by this Act it is necessary to remove alter or interfere with any apparatus of the council in such a way as in the reasonable opinion of the said engineer to interrupt the passage of sewage or other matter through any sewer drain or other work or of gas or water through or along any main or pipe the Company shall before removing altering or interfering with such apparatus construct in lieu thereof to the reasonable satisfaction of the said engineer a good and sufficient substitute for continuing the passage of sewage gas or water (as the case may be) as efficiently as the same passed by means of the apparatus proposed to be removed altered or interfered with:
- (4) The Company shall at all times maintain any such works constructed by them under the powers of this Act as affect any apparatus of the council in substantial repair to the reasonable satisfaction of the said engineer:
- (5) If in consequence of the construction or maintenance or execution of any works by the Company under the powers of this Act it becomes at any time reasonably necessary for the safety of any apparatus of the council to protect or support any such apparatus the Company shall to the reasonable satisfaction of the said engineer provide such works of protection or support as are reasonably required:

- (6) If in consequence of the construction of any works authorised by or the exercise of any of the powers of this Act any damage or injury is caused to any apparatus of the council the Company shall compensate the council for any loss or expenses which may be occasioned to the council by such damage or injury: A.D. 1914. —
- (7) The Company shall repay to the council any reasonable additional expenses (if any) incurred by them or by their engineer in superintending under the provisions of this section the construction of any works authorised by this Act or in connection with the consideration of any plans sections and particulars submitted under this section by the Company but the provisions of this subsection shall not apply to any remuneration paid to any permanent salaried officer of the council:
- (8) Nothing in this Act shall extend to authorise any interference with any works of the council as undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Act of 1882 apply (hereinafter called "electrical works") except in accordance with and subject to the provisions of that section:
- (9) If any existing sewer drain or work connected therewith (hereinafter called "sewerage works") belonging to the council or which they have the right to use or if any existing gas or water main pipe or apparatus or electrical works belonging to them be retained in on or under the lands or works of the Company to be acquired or constructed under this Act or on or under any level crossing or road to be stopped up by them under the powers thereof or if any part of any substituted work constructed by the Company under subsection (3) of this section be constructed in on or under such lands or works or level crossing or road or the site thereof the council shall be entitled without payment to an easement or right to maintain repair renew and relay any such sewerage works main pipe apparatus electrical works or substituted work and the council shall at all

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reasonable times have access thereto for those purposes and also for the purpose of examining the same but so as not to delay or interfere with the traffic or business of the Company in any unnecessary manner or to involve the Company in any unnecessary expense :

- (10) If any difference shall arise between the Company and the council under the provisions of this section or as to anything to be done or not to be done thereunder such difference shall unless otherwise agreed be settled by arbitration the arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

18. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties” :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company

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such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :

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(6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

(7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Period for
compulsory
purchase of
lands.

19. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Land for
extraordi-
nary pur-
poses.

20. The Company in addition to any other lands which by this or any other Act they are authorised to acquire may by agreement from time to time purchase additional land for any of the extraordinary purposes specified in the Railways Clauses

Consolidation Act 1845 connected with their undertaking not exceeding in quantity twenty acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased under the powers of this section. A.D. 1914.

21. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

22. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings. Power to Company to enter upon property for survey and valuation.

23. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any Costs of arbitration in certain cases.

A.D. 1914. judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Compensation in case of recently altered buildings acquired by Company.

24. In settling any question of disputed purchase money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirty-first day of October one thousand nine hundred and thirteen if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

As to private rights of way.

25. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished and the Company shall make full compensation to all parties interested in respect of any such rights of way and any private rights of way extinguished by virtue of this Act over any portion of any street road footpath or level crossing by this Act authorised to be stopped up or discontinued Such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Company to abandon portion of

26.—(1) The Company shall abandon the construction of so much of the Railway No. 3 authorised by the Act of 1890

as has not already been constructed and all the powers and obligations conferred or imposed upon the Company by the Act of 1890 or any Act or Acts amending the same with respect to or in connection with the said portion of railway shall cease.

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authorised
railway.

(2) The abandonment by the Company under the authority of this section of any portion of the said Railway No. 3 shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Act of 1890.

Compensa-
tion for
damage to
land by entry
&c. for pur-
poses of por-
tion of rail-
way aban-
doned.

(3) Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any portion of the said Railway No. 3 authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall subject to the provisions of subsection (4) of this section be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Compensa-
tion to be
made in
respect of
portion of
railway
abandoned.

(4) Nothing contained in this section shall prejudice alter or affect the rights of the parties to an agreement dated the twenty-third day of June one thousand nine hundred and two between Sir Arthur Pendarves Vivian K.C.B. (then Arthur Pendarves Vivian Esquire) of the first part Henry Jeffreys Bushby and Charles Evan Thomas both since deceased of the second part and the Company of the third part.

Saving
agreement of
23rd June
1902.

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Power to
Company to
lease or dis-
pose of
lands.

27. Notwithstanding anything to the contrary contained in the Lands Clauses Consolidation Act 1845 or any Act relating to the Company with which that Act is incorporated the Company shall not be required to sell or dispose of any lands which have from time to time been purchased or acquired by the Company adjoining or near to railways or stations belonging to the Company or any lands acquired by the Company under the provisions of this Act and which lands are not immediately or may not hereafter be required for the purposes of the undertaking of the Company but the Company may retain hold or use or may for such term or terms and on such conditions as they may deem expedient lease or otherwise dispose of such lands.

For better
prevention of
trespass on
railways of
Company.

28. Any person who shall trespass upon any railway now or hereafter belonging or leased to or worked by the Company solely or in conjunction with any other company or companies shall on conviction be liable to a penalty not exceeding forty shillings and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the recovery of damages not specially provided for and of penalties and to the determination of any other matter referred to justices shall apply to this enactment Provided that no person shall be subject to any penalty under this enactment unless it shall be proved to the satisfaction of the justices before whom complaint is laid that by notices painted on boards or printed on paper and pasted on boards or enamelled on or cast in metal or otherwise as the Company may think fit and clearly exhibited public warning has been given to persons not to trespass upon the railway and that one or more of such notices has been affixed at the station on that railway and at the public road level crossing (if any) nearest to the spot where such trespass is alleged to have been committed and such warning shall be renewed as often as the same shall be obliterated or destroyed and no penalty shall be recoverable unless such warning is so placed and renewed Provided also that no person lawfully crossing any such railway at any level crossing thereof shall be liable to any such penalty as aforesaid and Provided lastly that this enactment shall not interfere with but shall be subject to any future general enactment on the subject of trespassing on railways The provisions of this section shall not apply to the platforms or other premises (other than the lines of rails) forming part of a station on any such railway.

29. The Company may apply for any of the purposes of this Act to which capital is properly applicable any moneys which they are authorised by any previous Act to raise by shares or stock debenture stock or borrowing and which are not by that Act made applicable to any special purposes or which being so made applicable are not required for such special purposes.

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Power to
apply funds.

30. The Company (in addition to any capital which they are by any other Act authorised to raise) may from time to time raise by the creation and issue of new ordinary or new preference shares or stock or partly by ordinary and partly by preference shares or stock any sum or sums not exceeding one hundred and eighty-seven thousand five hundred pounds Provided that the dividend on any such preference shares or stock shall not exceed the rate of six pounds per centum per annum.

Power to
raise addi-
tional
capital.

31. The Company shall not issue any share created under the authority of this Act of less nominal value than ten pounds nor shall any share or stock vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share or the whole of such stock shall be paid in respect thereof.

As to vesting
of shares or
stock.

32. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital The capital in new shares or stock so created shall form part of the capital of the Company.

Except as
otherwise
provided new
shares or
stock to be
subject to
same inci-
dents as
other shares
or stock.

33. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be.

Dividend on
new shares
or stock.

A.D. 1914.

Restriction as to votes in respect of preferential shares or stock.

Power to borrow.

34. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

35. The Company may in respect of the additional capital of one hundred and eighty-seven thousand five hundred pounds which they are by this Act authorised to raise borrow on mortgage of their undertaking any moneys not exceeding in the whole sixty-two thousand five hundred pounds and of that sum they may borrow any moneys not exceeding twenty thousand pounds in respect of each sixty thousand pounds of their additional capital up to one hundred and eighty thousand pounds of such additional capital and any moneys not exceeding two thousand five hundred pounds in respect of the last seven thousand five hundred pounds of such additional capital but no part of any such sums of twenty thousand pounds or two thousand five hundred pounds shall be borrowed until shares for so much of the portion of additional capital in respect of which it is to be borrowed as is to be raised by means of shares are issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for so much of such portion of additional capital as is to be raised by means of shares have been issued and accepted and that one half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for so much of such portion of additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted *bonâ fide* and are held by the persons or corporations to whom the same were issued or their executors administrators successors or assigns and also so far as the said additional capital is raised by shares that such persons or corporations or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

36. The provisions of the Rhondda and Swansea Bay Railway Act 1897 as to the appointment of a receiver are hereby repealed but without prejudice to any appointment made or proceedings taken before the passing of this Act.

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Repealing provisions as to appointment of a receiver.

37. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds.

For appointment of a receiver.

38. The Company may create and issue debenture stock subject to the provisions of section 22 of the Rhondda and Swansea Bay Railway Act 1882 and section 43 of the Rhondda and Swansea Bay Railway Act 1892.

Debenture stock.

39. All moneys by this Act authorised to be raised by shares or stock or debenture stock or by borrowing shall be applied only for (A) the purposes of this Act (B) the purposes of the Great Western Railway Act 1912 to which the Company are by section 103 of that Act authorised to apply their funds (C) defraying any costs and expenses payable by the Company under section 42 of the Rhondda and Swansea Bay Railway Act 1882 and (D) the general purposes of the undertaking of the Company being in every case purposes to which capital is properly applicable.

Application of money.

40. Proceedings for the recovery of any demand made under the authority of this Act or any former Act of the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

41. No interest shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Interest not to be paid out of capital.

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Deposits for
future Bills
not to be
paid out of
capital.

42. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision as
to general
Railway
Acts.

43. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels now authorised to be taken by the Company.

Costs of Act.

44. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

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DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY BE
REQUIRED TO BE TAKEN BY THE COMPANY.

Parish.	Nos. on deposited Plans.
WIDENING OF RAILWAY.	
Aberavon - - - -	6
Margam - - - -	4 8
Michaelstone Lower - - - -	7 8
DIVERSION OF RIVER AVAN.	
Aberavon - - - - -	6
Margam - - - - -	4
LANDS AT CWMAVON.	
Michaelstone Lower - - -	12 15 19 20 25 26 35 37 38 39 40 48 49 50 54 62 64 65 66 67 68 69 70 71 72 74 77 80 81 82 87 88 89 90 91 93.

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